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Central Goods and Services Tax (Fifth Amendment) Rules, 2017 - 22/2017 - Central GST (CGST)

Government of India

Ministry of Finance

Department of Revenue

Central Board of Excise and Customs

Notification No. 22/2017 – Central Tax

New Delhi, the 17th August, 2017

G.S.R. 1023 E.- In exercise of the powers conferred by section 164 of the Central Goods and Services Tax Act, 2017 (12 of 2017), the Central Government hereby makes the following rules further to amend the Central Goods and Services Tax Rules, 2017, namely:-

(1) These rules may be called the Central Goods and Services Tax (Fifth Amendment) Rules, 2017.

(2) Save as otherwise provided, they shall come into force on the date[#] of their publication in the Official Gazette.

2. In the Central Goods and Services Tax Rules, 2017,

(i) in rule 3, in sub-rule (4), for the words “sixty days”, the words “ninety days” shall be substituted;

(ii) in rule 17, with effect from the 22nd June, 2017, in sub-rule (2), after the words, “said form”, the words “or after receiving a recommendation from the Ministry of External Affairs, Government of India” shall be inserted;

(iii) in rule 40, with effect from the 1st day of July, 2017, in sub-rule (1), for clause (b), the following shall be substituted, namely:-

> *“*(b) the registered person shall within a period of thirty days from the date of becoming eligible to avail the input tax credit under sub-section (1) of section 18, or within such further period as may be extended by the Commissioner by a notification in this behalf, shall make a declaration, electronically, on the common portal in **FORM GST ITC-01** to the effect that he is eligible to avail the input tax credit as aforesaid:
>
> Provided that any extension of the time limit notified by the Commissioner of State tax or the Commissioner of Union territory tax shall be deemed to be notified by the Commissioner.”;

(iv) after rule 44, the following rule shall be inserted, namely:-

“**44A. Manner of reversal of credit of Additional duty of Customs in respect of Gold dore bar.-** *The credit of Central tax in the electronic credit ledger taken in terms of the provisions of section 140 relating to the CENVAT Credit carried forward which had accrued on account of payment of the additional duty of customs levied under sub-section (1) of section 3 of the Customs Tariff Act, 1975 (51 of 1975), paid at the time of importation of gold dore bar, on the stock of gold dore bar held on the 1st day of July, 2017 or contained in gold or gold jewellery held in stock on the*

1st day of July, 2017 made out of such imported gold dore bar, shall be restricted to one-sixth of such credit and five-sixth of such credit shall be debited from the electronic credit ledger at the time of supply of such gold dore bar or the gold or the gold jewellery made therefrom and where such supply has already been made, such debit shall be within one week from the date of commencement of these Rules.";

(v) in rule 61, with effect from the 1st day of July, 2017, in sub-rule (5), for the words "specify that", the words "specify the manner and conditions subject to which the" shall be substituted;

(vi) in rule 87,-

(a) in sub-rule (2), the following shall be inserted, namely:-

"Provided that the challan in FORM GST PMT-06 generated at the common portal shall be valid for a period of fifteen days.

Provided further that a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (13 of 2017) may also do so through the Board"s payment system namely, Electronic Accounting System in Excise and Service Tax from the date to be notified by the Board.";

(b) in sub-rule (3), for the second proviso, the following proviso shall be substituted, namely:-

"Provided further that a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (13 of 2017) may also make the deposit under sub-rule (2) through international money transfer through Society for Worldwide Interbank Financial Telecommunication payment network, from the date to be notified by the Board.";

(vii) for rule 103, with effect from the 1st day of July, 2017, the following rule shall be substituted, namely:-

"103. The Government shall appoint officers not below the rank of Joint Commissioner as member of the Authority for Advance Ruling.";

(viii) in "FORM GST REG-01" under the heading „Instructions for submission of Application for Registration", after Serial No. 15, the following Serial No. shall be inserted, namely:-

"16. Government departments applying for registration as suppliers may not furnish Bank Account details.";

(ix) With effect from the 22nd June, 2017, for "FORM GST REG-13", the following FORM shall be substituted, namely:-

"FORM GST REG-13

[See Rule 17]

Application/Form for grant of Unique Identity Number (UIN) to UN Bodies/ Embassies /others

State /UT – District –

PART A

(i)	Name of the Entity	
(ii)	Permanent Account Number (PAN) of entity (Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act)	
(iii)	Name of the Authorised Signatory	
(iv)	PAN of Authorised Signatory (Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act)	
(v)	Email Address of the Authorised Signatory	
(vi)	Mobile Number of the Authorised Signatory (+91)	

PART B

1.	Type of Entity (Choose one)	UN Body __ Embassy____ Other Person __	
2.	Country		
2A.	Ministry of External Affairs, Government of India" Recommendation (if applicable)	Letter No.	Date
3.	Notification details	Notification No.	Date
4.	Address of the entity in State		
	Building No./Flat No.	Floor No.	
	Name of the Premises/Building	Road/Street	
	City/Town/Village	District	
	Block/Taluka		
	Latitude	Longitude	
	State	PIN Code	

	Contact Information			
	Email Address		Telephone number	
	Fax Number		Mobile Number	

7.	7. Details of Authorized Signatory, if applicable			
	Particulars	First Name	Middle Name	Last name
	Name			
	Photo			
	Name of Father			
	Date of Birth	DD/MM/YYYY	Gender	Male, Female, Other
	Mobile Number		Email address	
	Telephone No.			
	Designation /Status		Director Identification Number (if any)	
	PAN (Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act)		Aadhaar Number (Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act)	
	Are you a citizen of India?	Yes / No	Passport No. (in case of foreigners)	
	Residential Address			
	Building No/Flat No		Floor No	
	Name of the Premises/Building		Road/Street	

	Town/City/Village		District	
	Block/Taluka			
	State		PIN Code	
8.	Bank Account Details (add more if required)			
	Account Number		Type of Account	
	IFSC		Bank Name	
	Branch Address			
9.	Documents Uploaded *The authorized person who is in possession of the documentary evidence shall upload the scanned copy of such documents including the copy of resolution / power of attorney, authorizing the applicant to represent the entity.* Or *The proper officer who has collected the documentary evidence from the applicant shall upload the scanned copy of such documents including the copy of resolution / power of attorney, authorizing the applicant to represent the UN Body / Embassy etc. in India and link it along with the UIN generated and allotted to respective UN Body/ Embassy etc.*			
10.	Verification *I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.*			

Place: (Signature)

Date:

Name of Authorized Person:

Or

(Signature)

Name of Proper Officer:

Designation:

Jurisdiction:

Place:

Date:

Instructions for submission of application for registration for UN Bodies/ Embassies/others notified by the Government.

- Every person required to obtain a unique identity number shall submit the application electronically.
- Application shall be filed through Common Portal or registration can be granted suo-moto by proper officer.
- The application filed on the Common Portal is required to be signed electronically or through any other mode as specified by the Government.
- The details of the person authorized by the concerned entity to sign the refund application or otherwise, should be filled up against the “Authorised Signatory details” in the application.
- PAN / Aadhaar will not be applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act.”;

(x) With effect from the 1st day of July, 2017, in FORM GST TRAN-1 in Serial No. 7,-

(i) in item (a), for the word, figures and brackets “and 140 (6)”, the figures, brackets and word “, 140 (6) and 140 (7) shall be substituted;

(ii) in item (b), -

(a) after the word, figures and brackets, “section 140 (5)”, the words, figures and brackets “and section 140(7)” shall be inserted;

(b) for column heading 1, the column heading “registration number of the supplier or input service distributor” shall be substituted;

(c) in the heading of column 8, after the words “Eligible duties and taxes”, the brackets and words “(central taxes)” shall be inserted.

[F. No. 349/58/2017-GST(Pt.)]

(Dr. Sreeparvathy S.L.)

Under Secretary to the Government of India

Note:- The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification No. 3/2017-Central Tax, dated the 19th June, 2017, published vide G.S.R number 610 (E), dated the 19th June, 2017 and last amended vide notification No. 17/2017-Central Tax, dated the 27th July, 2017, published vide G.S.R number 965 (E) dated the 27th July, 2017.

The date of publication in the Official Gazette is 17th August, 2017